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IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF WASHINGTON
SPOKANE DIVISION

CHARLES PRICE, Plaintiff, v. BNSF RAILWAY, CO. Defendant.	**NO.** **COMPLAINT** **DEMAND FOR JURY TRIAL**

INTRODUCTION

1. Charles Price is a locomotive engineer who took medical leave and, when he sought to return, BNSF Railway Company ("BNSF") refused to clear him to return to work based on its medical director's assertion that Price posed an unacceptably high risk of sudden incapacitation. That assertion ignored Price's treating neurosurgeon's full release to work

without restrictions and rested on a zero-risk approach that is neither medically sound nor lawful.

2. Washington's Law Against Discrimination (WLAD), RCW 49.60, prohibits employers from using qualification standards and medical-screening practices that screen out qualified workers because of disability, and it requires an individualized, evidence-based assessment and reasonable accommodation where needed. BNSF did neither here. Price brings this action to be reinstated and made whole.

PARTIES

3. Price resides in Deer Park, Washington, and at all times relevant was employed by BNSF in Washington as a locomotive engineer.

4. BNSF is a Delaware corporation with its principal offices in Fort Worth, Texas. BNSF operates rail lines and employs personnel throughout Washington, including within this District. At all relevant times, BNSF was Price's employer under RCW 49.60.040(11)

JURISDICTION AND VENUE

5. This Court has diversity jurisdiction under 28 U.S.C. § 1332(a). Plaintiff is a citizen of Washington. Defendant is a Delaware corporation with its principal place of business in Texas. The amount in controversy exceeds $75,000, exclusive of interest and costs.

6. Venue is proper in this District under 28 U.S.C. § 1391(b) because a substantial part of the events or omissions giving rise to the claims occurred here and BNSF does business here.

FACTUAL ALLEGATIONS

7. Price is an experienced locomotive engineer with a history of safe performance.

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8. In early 2023, Price was treated for a subdural hematoma.

9. Subsequent imaging confirmed no acute intracranial abnormality and only stable postoperative changes.

10. His treating neurosurgeon determined that he required no further neurosurgical treatment and imposed "no restrictions from a neurosurgical standpoint."

11. When Price later sought to return to work, BNSF's medical department declined to clear him for duty pending a "fitness for duty" determination and projected an "estimated date of resolution" years into the future.

12. During this period, BNSF's medical department communicated with Price and his providers and ultimately concluded that he presented an "unacceptably high risk" of sudden incapacitation.

13. BNSF did not conduct an individualized assessment grounded in the best available objective medical evidence of Price's present ability to safely perform the essential functions of his job, nor did it consider or offer reasonable accommodations that would have allowed him to continue working safely.

14. Instead, BNSF applied a blanket, zero-risk standard that screens out qualified employees with a history of fully controlled or resolved conditions, notwithstanding their treating specialists' releases and objective clinical findings.

15. Price has suffered and continues to suffer lost wages and benefits, emotional harm, and other damages as a direct and proximate result of BNSF's conduct.

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CAUSE OF ACTION

16. Price is a person with a disability and/or was perceived as such under RCW 49.60.040. BNSF discriminated against him in the terms and conditions of employment because of disability or perceived disability, including by refusing to return him to duty and refusing to reinstate him despite medical clearance and objective evidence supporting his safe return to work.

17. BNSF further violated RCW 49.60.180 by using qualification standards, selection criteria, or screening methods that screen out or tend to screen out individuals with disabilities and are not job-related and consistent with business necessity.

18. BNSF also failed to engage in the interactive process and failed to provide reasonable accommodation that would have enabled Price to continue working.

REQUEST FOR RELIEF

19. Price requests that the Court find BNSF acted in violation of the WLAD.

20. Price further requests that the Court order BNSF to:

- reinstate him to the same position he held before BNSF effectively terminated him;
- pay to him an award of compensatory damages arising from loss of income and benefits in an amount to be determined by the trier of fact;
- pay to him an award for emotional distress in an amount to be determined by the trier of fact;
- pay to him an award for costs (including litigation and expert costs), disbursements, and attorney's fees; and

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- pay to him an award for punitive damages in an amount to be determined by the trier of fact.

21. Price further requests that the Court order judgment against BNSF for all other relief available under the WLAD and such other relief as the Court deems just and equitable.

Dated: October 13, 2025

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